AMPHITUNE

Terms of Service

Last updated: [18.09.2026]

Amphitune is an online music sharing platform operated by **[Company Name] Oy** (“Amphitune,” “we,” “us,” or “our”), a company registered in Finland with its registered office at [registered address] (business ID [Y-tunnus]). These Terms of Service (“Terms”) govern your access to and use of the Amphitune website, applications, and related services (together, the “Service”). By creating an account or otherwise using the Service, you agree to be bound by these Terms and by our Privacy Notice, which is incorporated by reference. If you do not agree, do not use the Service.

Amphitune is a music-sharing platform, not a streaming or licensing service. We do not license music to listeners, and we do not guarantee any level of exposure, plays, or income to artists.

1. Eligibility and Accounts

- You must be at least 13 years old to create an account. If you are under the age of majority in your country of residence, you confirm that a parent or legal guardian has reviewed and agreed to these Terms on your behalf where required by local law.
- To register, you provide an email address and a username. We do not store passwords; you sign in using a magic link sent to your verified email address.
- You are responsible for keeping your registered email account secure, since it is the sole means of accessing your Amphitune account. You must notify us promptly if you believe your account has been compromised.
- You must provide accurate registration information and keep it up to date. You may update your username, profile bio, and up to three external links to other sites at any time.
- One account per person. You may not create an account on behalf of someone else without authorization, or use another user's account without permission.

2. The Service

Amphitune lets users upload MP3 or WAV audio tracks and share them with listeners through the following feeds:

- Undiscovered — tracks remain in this feed, sorted oldest first, until they reach a set number of unique listeners, giving less-heard tracks a fair chance of exposure.
- New — recently uploaded tracks, shown in chronological order.
- Followed — tracks uploaded by users you follow.
- Search — lets you look up tracks by artist or title.

Each track is tagged with a single main genre and up to three mood tags describing its feel, rather than granular subgenres. A play is counted after a listener has streamed a track for at least 15 seconds. Users may like a track and repost it to their own profile once per track; reposts cannot be undone, and you will be asked to confirm before a repost is committed.

We may change, suspend, or discontinue any feature of the Service, including feed algorithms, listener thresholds, and storage limits, at any time. We will make reasonable efforts to notify you of material changes that affect your use of the Service.

3. Subscription Plans and Billing

3.1 Plans

Amphitune offers a Free plan and a Premium plan:

- Free — 150 MB of storage and a limit of 50 unique listeners per track on the Undiscovered feed.
- Premium — 5 GB of storage and a limit of 200 unique listeners per track on the Undiscovered feed.

All new accounts start on the Free plan. Storage limits, listener thresholds, and plan pricing may change from time to time; we will give you reasonable notice of changes that materially affect a plan you are subscribed to.

3.2 Billing

Premium subscriptions are billed annually in advance through our payment processor, **Stripe**. By upgrading to Premium, you authorize us (via Stripe) to charge your chosen payment method for the subscription fee and any applicable taxes. We do not store your card details; these are handled directly by Stripe in accordance with its own terms and PCI DSS obligations.

3.3 Right of Withdrawal and Cancellation

If you are a consumer in the European Union or European Economic Area, you have a statutory right to withdraw from your Premium subscription within 14 days of upgrading, without giving a reason. Cancelling within this 14-day window reverts your account to the Free plan immediately and any amount paid for the current period is refunded via Stripe.

By choosing to start using Premium features immediately upon upgrading, you expressly request early performance of the contract and acknowledge that this may affect your withdrawal right once the Service has been fully performed within the 14-day period, to the extent permitted by applicable law.

If you cancel after the 14-day window, no refund is issued for the current period, but your Premium plan (and its storage and listener limits) remains active until the end of the current annual period, after which your account automatically reverts to Free unless renewed.

3.4 Downgrading and Renewal

You may downgrade from Premium to Free at any time through your account settings; downgrading outside the 14-day window takes effect at the end of the current billing period. Subscriptions renew automatically at the then-current price unless cancelled before the renewal date.

4. Your Content

4.1 Ownership

You retain all ownership rights in the tracks, titles, artwork, bios, and other content you upload or submit to Amphitune (“User Content”). We do not claim ownership of your User Content.

4.2 License to Amphitune

By uploading User Content, you grant Amphitune a non-exclusive, worldwide, royalty-free license to host, store, reproduce, and make your User Content available for streaming through the Service (including via our third-party object storage provider), solely for the purpose of operating and providing the Service to you and other users. This license ends when you delete the relevant track or your account, subject to our data retention practices described in our Privacy Notice, and to any copies retained temporarily by our storage and backup providers.

4.3 Your Responsibilities

You confirm that you own or have all necessary rights and permissions (including any third-party clearances) to upload your User Content and to grant the license above, and that your User Content does not infringe any third party's copyright, trademark, privacy, publicity, or other rights.

4.4 Track Management and Deletion

You may update the title, genre, and mood tags of your uploaded tracks at any time. You may delete a track at any time; deletion marks the associated audio file for removal from our storage provider.

5. Prohibited Conduct

You agree not to:

- Upload content that infringes the copyright, trademark, or other intellectual property rights of any third party;
- Upload content that is unlawful, defamatory, obscene, hateful, or otherwise violates the rights of others;
- Use bots, scripts, or other automated means to inflate plays, likes, reposts, or listener counts, or otherwise manipulate the Undiscovered, New, Followed, or Search feeds;
- Attempt to gain unauthorized access to another user's account or to any part of the Service not intended for public access;
- Interfere with, disrupt, or place undue burden on the Service or its infrastructure;
- Use the Service for any purpose that violates applicable law.

We may remove content, suspend accounts, or take other action, with or without notice, where we reasonably believe these Terms or applicable law have been violated.

6. Copyright Infringement Reports

Amphitune provides an in-product mechanism for reporting tracks that you believe infringe your copyright. Reports should identify the allegedly infringing track, the copyrighted work you believe is infringed, and your contact details, with sufficient detail for us to locate and assess the content.

Where we remove or restrict access to a track in response to a report, we will provide the uploader with a statement of reasons for that decision, except where we are legally prohibited from doing so. Repeat or clearly unfounded infringers may have their accounts suspended or terminated.

Where required for users located outside the European Union (for example, in the United States), a separate takedown process may apply; details will be made available on the Service.

7. Account Deletion and Termination

You may delete your account at any time from your account settings. Deleting your account permanently deletes all tracks you have uploaded, along with any likes and reposts of those tracks, and any likes and reposts you have given to other users' tracks. Your data is retained temporarily until our scheduled cleanup process permanently removes deleted accounts and tracks, as described in our Privacy Notice.

We may suspend or terminate your account if you materially breach these Terms, engage in prohibited conduct, or if we are required to do so by law. Where reasonably possible, we will give you notice before termination.

8. Disclaimers

The Service is provided “as is” and “as available.” We do not guarantee that the Service will be uninterrupted, secure, or error-free, or that any track will reach a particular number of listeners, plays, or followers. We are not responsible for the accuracy, legality, or quality of User Content uploaded by other users.

9. Limitation of Liability

To the fullest extent permitted by applicable law, Amphitune shall not be liable for any indirect, incidental, special, consequential, or punitive damages, or any loss of data, revenue, or goodwill, arising out of or related to your use of the Service. Nothing in these Terms limits liability that cannot be excluded or limited under applicable Finnish or EU consumer protection law, including liability for death, personal injury, fraud, or gross negligence.

10. Changes to These Terms

We may update these Terms from time to time. If we make material changes, we will notify you by email or through the Service before the changes take effect. Continued use of the Service after changes take effect constitutes acceptance of the updated Terms. If you do not agree to the changes, you may close your account.

11. Governing Law and Disputes

These Terms are governed by the laws of Finland, without regard to conflict-of-law principles. If you are a consumer, you also benefit from any mandatory consumer-protection provisions of the country in which you are habitually resident. Any dispute arising from these Terms that cannot be resolved informally shall be subject to the exclusive jurisdiction of the courts of Finland, without prejudice to your right, as a consumer, to bring proceedings in the courts of your own country of residence, or to use the EU Online Dispute Resolution platform.

12. Contact

Questions about these Terms can be sent to **[contact email]**.